

**UNITED STATES DISTRICT COURT  
EASTERN DISTRICT OF NEW YORK**

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**MICHAEL GUZMAN,**

**Plaintiff,**

**COMPLAINT AND  
JURY DEMAND**

**-against-**

**Docket No. 15CV2662**

**CITY OF NEW YORK, POLICE OFFICER LESZEK  
DADURA #4784, JOHN DOE OFFICERS #1-5**

**ECF CASE**

**Defendants.**  
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Plaintiff Michael Guzman by his attorneys, Stoll, Glickman & Bellina, LLP, for his complaint alleges as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action in which plaintiff seeks relief through 42 U.S.C. § 1983 for the violation of his Fourth and Fourteenth Amendment rights in addition to violations of the laws and Constitution of the State of New York.
2. The claim arises from a September 21, 2013 incident in which New York City Police Department ("NYPD") Officers of the Transit Bureau, Transit District 30 Command, acting under color of state law, intentionally and willfully subjected Mr. Guzman to false arrest and excessive force.
3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

**JURISDICTION**

4. This action arises under the Fourth and Fourteenth Amendments to the United

States Constitution and under 42 U.S.C. §§ 1983 and 1988.

5. The jurisdiction of this court is predicated upon 28 U.S.C. §§ 1331, 1343(a)(3)-(4), 1367(a), and the doctrine of pendent jurisdiction.

#### VENUE

6. Venue is laid within the Eastern District of New York in that Defendant City of New York is located within and a substantial part of the events giving rise to the claim occurred within the boundaries of the Eastern District.

#### PARTIES

7. Plaintiff Michael Guzman is a resident of Bronx County in New York State.

8. The City of New York ("City") is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention, and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

9. All police officer defendants were at all times here relevant police officers of the NYPD, and as such were acting in the capacity of agents, servants, and employees of the City of New York. On information and belief, at all times relevant hereto, defendant police officers were involved in the decision to arrest plaintiff without probable cause or failed to intervene in the actions of their fellow officers when they observed them arresting plaintiff without probable cause. The police officer defendants are sued in their

individual capacities.

10. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

#### FACTUAL ALLEGATIONS

11. On September 21, 2013, at approximately 5:50 P.M., Mr. Guzman was waiting on the platform inside a subway station at the corner of Joralemon Street and Court Street in Kings County.

12. Mr. Guzman observed that a police officer had detained three civilians, all of whom were unknown to Mr. Guzman. The three individuals were sitting on a subway bench on the platform with their hands behind their backs. The detainees appeared frightened.

13. From a distance of more than ten feet away, Mr. Guzman spoke to the three civilians, asking them if they were all right, and if there they wanted him to contact anyone on their behalf.

14. The police officer told Mr. Guzman that what he was doing was illegal. At this point, Mr. Guzman began to use the video recording function on his phone to record the encounter with the police officer.

15. Defendant officer told Mr. Guzman that he could not record and that he should "back up." Mr. Guzman complied, stating, "I'm backing up." At all times, Mr. Guzman remained more than ten feet away from the officer.

16. The police officer then walked away from the three detained civilians and approached Mr. Guzman. The officer threatened to arrest him for filming the encounter.

Mr. Guzman, who is a community organizer and has received extensive training in peaceful police-civilian encounters, replied that his actions were not illegal.

17. Defendant officer asked Mr. Guzman for identification. Mr. Guzman replied that he would not give the officer his identification, but that he was willing to provide his driver's license number.

18. The officer grabbed Mr. Guzman's left arm and twisted it hard behind Mr. Guzman's back. Mr. Guzman continued to record and narrate the encounter while holding the phone in his right hand.

19. The officer grabbed Mr. Guzman's right arm, twisted it behind his back, and took Mr. Guzman's phone out of his hand. After both of Mr. Guzman's hands were behind his back, the officer pushed him up against a wall and placed him in handcuffs.

He then led Mr. Guzman to a bench on the platform and allowed the three civilian detainees to leave the station.

20. The officer called for backup. Two additional officers arrived. One of the officers, a male, insulted Mr. Guzman and his community organizing activities.

21. Mr. Guzman was escorted to a patrol car and taken to a police station inside of another subway station. At the precinct, Mr. Guzman did not consent to a search of his person or his belongings, and asked for an attorney.

22. Mr. Guzman was placed in a holding cell. His belongings were taken and vouchered. His cell phone was taken apart and placed in a separate bag. Mr. Guzman was told that the cell phone would be used as evidence in the criminal case against him.

23. While waiting in the cell, Mr. Guzman asked to make a phone call. He also requested medical attention because his shoulder felt hot and sore. Police officers

ignored his request.

24. Approximately three hours later, Emergency Medical Technicians ("EMTs") arrived. They told Mr. Guzman that they had just received a call requesting medical attention.

25. After examining Mr. Guzman, the EMTs placed Mr. Guzman's arm in a sling and took him to the hospital in an ambulance.

26. At the hospital, a nurse examined him, gave him medication for his pain and inflammation, and released him back to the custody of the NYPD.

27. Mr. Guzman was arraigned the following day, September 22, 2013, in Brooklyn Criminal Court. The judge released him on his own recognizance.

28. On March 10, 2014, Mr. Guzman's case was dismissed and sealed by the Honorable Michael Gerstein.

29. At all times during the events described above, the defendant police officers were engaged in a joint venture and formed an agreement to violate plaintiff's rights. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against plaintiff.

30. During all of the events above described, defendants acted maliciously and with intent to injure plaintiff.

#### DAMAGES

31. As a direct and proximate result of the acts of defendants, plaintiff suffered the following injuries and damages:

- a. Violation of his rights pursuant to the Fourth Amendment of the United States Constitution to be free from an unreasonable search and seizure of their persons;
- b. Violation of his rights pursuant to the Fourteenth Amendment of the United States Constitution to due process;
- c. Violation of his New York State Constitutional rights under Article 1, Section 12 to be free from an unreasonable search and seizure;
- d. Violation of his New York State Constitutional rights under Article 1, Section 6 to due process;
- e. Emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety;
- f. Loss of liberty; and
- g. Physical pain and suffering.

**FIRST CAUSE OF ACTION**

42 U.S.C. § 1983

**FALSE ARREST AND USE OF EXCESSIVE FORCE**

32. The above paragraphs are here incorporated by reference.

33. The officer defendants wrongfully and illegally arrested, detained and imprisoned plaintiff.

34. Defendants used excessive force against plaintiff, and failed to intervene in each other's obviously illegal actions.

35. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, imprisonment, and use of excessive force against plaintiff was carried out without a valid warrant, without plaintiff's consent, and without probable cause or reasonable suspicion.

36. At all relevant times, defendants acted forcibly in apprehending, arresting, and imprisoning plaintiff.

37. Throughout this period, plaintiff was unlawfully, wrongfully, and unjustifiably held under arrest, deprived of his liberty, imprisoned, and falsely charged.

38. All of this occurred without any illegal conduct by plaintiff.

39. The officer defendants acted under color of law and in their individual and official capacities and within the scope of their respective employment as NYPD officers. Said acts by officer defendants were beyond the scope of their jurisdiction, without authority of law, and in abuse of their powers. Said defendants acted willfully, knowingly and with the specific intent to deprive plaintiff of his constitutional and statutory rights to be free from unreasonable search and seizure and to due process of law pursuant to the Fourth and Fourteenth Amendments secured by the United States Constitution, and are liable to plaintiff under 42 U.S.C. § 1983.

40. As a direct and proximate result of the misconduct and the abuse of authority detailed above, plaintiff sustained the damages described above.

### **SECOND CAUSE OF ACTION**

42 U.S.C. § 1983

#### **MUNICIPAL LIABILITY**

41. The above paragraphs are here incorporated by reference.

42. The City is liable for the damages suffered by plaintiff as a result of the conduct of their employees, agents, and servants, in that, after learning of their employees' violation of plaintiff's constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing

subordinates who caused the unlawful condition or event.

43. The City has been alerted to the regular use of excessive force and false arrests by its police officers, but has nevertheless exhibited deliberate indifference to such excessive force and false arrests; that deliberate indifference caused the violation of plaintiff's constitutional rights in this case.

44. The aforesaid event was not an isolated incident. The City has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board ("CCRB"), and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of his police officers use excessive force, unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of his fellow officers. Nevertheless, the City has allowed policies and practices that allow the aforementioned to persist.

45. For example, the well documented failures of the CCRB, a City agency, to substantiate obviously meritorious citizen complaints have gone uncorrected. The CCRB regularly finds complainants lack credibility based on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to them. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only

make recommendations to the NYPD, once finding misconduct by an officer.

46. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and underutilized. Furthermore, in the extraordinarily rare event that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which Commissioner Bratton has done on many occasions.

47. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of his conduct. Without this notification,

improper search and seizure practices and incredible testimony go uncorrected.

Additionally, according to a report of the New York City Bar Association issued in 2000, the City has isolated the Law Department from the discipline of police officers, so that civil suits against police officers for actions taken in his capacity as police officers have no impact on the officers' careers, regardless of the outcome of the civil actions. Alan Hevesi, as New York City Comptroller, in 1999 reported that there was a "total disconnect" between the settlements of even substantial civil claims and police department action against officers.

48. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiff's civil rights, without fear of reprisal.

49. Plaintiff has been damaged as a result of the deliberate indifference of the City to the constitutional rights of the City's inhabitants.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally, as follows:

- A. In favor of plaintiff in an amount to be determined by a jury for each of plaintiff's causes of action;
- B. Awarding plaintiff punitive damages in an amount to be determined by a jury;
- C. Awarding plaintiff reasonable attorneys' fees, costs and disbursements of this action; and
- D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

DATED: May 8, 2015  
Brooklyn, New York

Respectfully submitted,



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